BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona
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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, an individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation,** Defendants.	Case No. 3:26-cv-07504-LJC **PLAINTIFF'S FIRST SET OF INTERROGATORIES TO DEFENDANT SHANNON SMITH, LCSW** Set No.: 1 (Fed. R. Civ. P. 26, 33) Judge: Hon. Lisa J. Cisneros

PLAINTIFF'S FIRST SET OF INTERROGATORIES

TO DEFENDANT SHANNON SMITH, LCSW

TO DEFENDANT SHANNON SMITH, LCSW AND HER ATTORNEYS OF RECORD:

Under Federal Rules of Civil Procedure 26 and 33, Plaintiff Brendan Ngehsi Newanforbi requests that Defendant Shannon Smith, LCSW answer each interrogatory below separately and fully, in writing and under oath, and serve a written response on Plaintiff within thirty (30) days after service.

INSTRUCTIONS

1. Answer each interrogatory separately and fully in writing under oath (Fed. R. Civ. P. 33(b)(3)), within 30 days after service.

2. Answer on all information available to you, including information held by your employees, agents, attorneys, and contractors. If you cannot answer fully after reasonable inquiry, answer to the extent possible and state what you did to obtain the rest.

3. State every objection with specificity (Rule 33(b)(4)); answer any part not objected to. A privilege claim must be made as Rule 26(b)(5)(A) requires.

4. If you rely on Rule 33(d), specify the records by Bates number in enough detail for Plaintiff to locate them as readily as you could.

5. These interrogatories are continuing to the extent required by Rule 26(e).

DEFINITIONS

"YOU" and "YOUR" means Defendant Shannon Smith, LCSW, and anyone acting on her behalf.

"PLAINTIFF" means Brendan Ngehsi Newanforbi.

"HOPE" means Defendant HOPE Psychotherapy, Inc. (d/b/a HOPE Program, appearing as HOPE Program, A Licensed Clinical Social Worker Professional Corporation), including its officers, employees, and agents, and any management or records contractor acting for it.

"SMITH" means Defendant Shannon Smith, LCSW.

"CDCR" means the California Department of Corrections and Rehabilitation, including its Division of Adult Parole Operations (DAPO) and any parole agent or supervisor.

"CTM" means a Containment Team Meeting or similar case conference among a treatment provider, CDCR, and/or a polygraph examiner concerning a parolee.

"COMPLETION DETERMINATION" means any recommendation, decision, or report about whether a parolee has completed, graduated from, or may be discharged or titrated from sex-offender treatment, including any statement that the parolee has not completed treatment.

"SAN JOAQUIN ACTION" means Newanforbi v. Palacios et al., San Joaquin County Superior Court, in which HOPE was a party.

"STOCKTON SITE" means HOPE's Stockton, California treatment location.

"DOCUMENT" means has the full meaning of Fed. R. Civ. P. 34(a)(1)(A), including electronically stored information (ESI) such as email, text and app-based messages, EHR entries, audit logs, and audio or video recordings.

"COMMUNICATION" means any transmission of information by any means, including email, text or app message (on any device, including a personal device used for work), letter, portal message, and recorded meeting.

"IDENTIFY" means (a) for a person: full name, last known employer, title, and business contact; (b) for a DOCUMENT: type, date, author, recipients, and Bates number if produced.

"RELEVANT PERIOD" means January 1, 2021 to the date of response, unless a request states otherwise.

INTERROGATORIES

INTERROGATORY NO. 1:

Describe each position you have held with HOPE during the RELEVANT PERIOD, stating the dates and your duties regarding clinical policy, the STOCKTON SITE, and HOPE's relationship with CDCR.

INTERROGATORY NO. 2:

Describe your role in drafting, approving, enforcing, or changing any HOPE policy, practice, or custom governing COMPLETION DETERMINATIONS for parolees during the RELEVANT PERIOD.

INTERROGATORY NO. 3:

Describe the change to HOPE's treatment-completion or aftercare policy that HOPE has stated occurred in or about October 2024, including your role in it.

INTERROGATORY NO. 4:

State the date and manner in which you first learned of PLAINTIFF, and describe each later occasion on which you received information about him before this action was filed.

INTERROGATORY NO. 5:

State the date and manner in which you first learned that PLAINTIFF had complained about, or sued over, HOPE's COMPLETION DETERMINATIONS, and describe what you did in response.

INTERROGATORY NO. 6:

Describe each COMMUNICATION you had with CDCR during the RELEVANT PERIOD concerning treatment-completion, aftercare, or discharge policy for parolees, stating the date and participants.

INTERROGATORY NO. 7:

Describe each COMMUNICATION you had with any HOPE employee concerning PLAINTIFF, stating the date, participants, and substance.

INTERROGATORY NO. 8:

State how and when you first learned of In re Dwyer (San Joaquin County Superior Court habeas proceeding), and describe what, if anything, you did in response.

INTERROGATORY NO. 9:

State how and when you first learned of the April 17, 2025 amendments to Cal. Code Regs., tit. 15, section 3574, and describe what, if anything, you did in response.

INTERROGATORY NO. 10:

State all facts supporting your contention that you are in privity with Katie Palacios or HOPE for purposes of claim preclusion based on the SAN JOAQUIN ACTION.

INTERROGATORY NO. 11:

State all facts supporting your contention that you did not act under color of state law with respect to the matters alleged in the complaint.

INTERROGATORY NO. 12:

State all facts supporting any contention that you did not personally participate in, direct, or know of and acquiesce in the conduct alleged against you.

INTERROGATORY NO. 13:

State all facts supporting any contention that you did not threaten, intimidate, or coerce PLAINTIFF, directly or through HOPE's reports to CDCR, within the meaning of California Civil Code section 52.1.

INTERROGATORY NO. 14:

IDENTIFY each email account, phone number, messaging application, and device (including any personal device or account) you used for HOPE business during the RELEVANT PERIOD.

INTERROGATORY NO. 15:

Describe each step you took to preserve documents relevant to PLAINTIFF's claims, including the date of each step.

INTERROGATORY NO. 16:

IDENTIFY each insurance policy under which an insurer may be liable to satisfy all or part of a judgment against you in this action, including any individual or professional policy of your own, and state each insurer's coverage position.

INTERROGATORY NO. 17:

Describe any compensation or benefit you received during the RELEVANT PERIOD that was based in any part on HOPE's revenue, census, or client retention at the STOCKTON SITE.

INTERROGATORY NO. 18:

State your net worth and annual income for each of 2024 and 2025.

INTERROGATORY NO. 19:

IDENTIFY each person you believe has knowledge of the facts alleged in the complaint or of your defenses, stating the subject of each person's knowledge.

INTERROGATORY NO. 20:

State all facts supporting each affirmative defense you assert in your answer to the operative complaint.

Dated: _____, 2026

Respectfully submitted,

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Propria Persona

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
Plaintiff

Case Number: 3:26-cv-07504-LJC

V.

SHANNON SMITH, LCSW;
HOPE PSYCHOTHERAPY, INC.
Defendants

PROOF OF SERVICE

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I hereby certify that on *(Date)* , I served a copy of the attached

PLAINTIFF'S FIRST SET OF INTERROGATORIES TO DEFENDANT SHANNON SMITH, LCSW,

by transmitting a true copy by electronic mail (PDF attachments) to the e-mail address(es) hereinafter listed:

(List Name and E-mail Address of Each Defendant or Attorney Served)

Cynthia G. Lawrence, Esq. — cynthia@sims-law.net
Blaze Van Dine, Esq. — blaze@sims-law.net
Eric T. Martinez, Esq. — emartinez@sims-law.net
Sims, Lawrence & Broghammer (e-service) — slb-eservice@sims-law.net

Attorneys for Defendants Shannon Smith, LCSW, and
HOPE Psychotherapy, Inc. (d/b/a HOPE Program)

Service by electronic means under Fed. R. Civ. P. 5(b)(2)(E),
pursuant to the written consent of counsel for Defendants.

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
v.
SHANNON SMITH, LCSW et al.

Case Number: 3:26-cv-07504-LJC
PROOF OF SERVICE
(continued)

The names and addresses of the persons served appear on page 1.

I declare under penalty of perjury that the foregoing is true and correct.

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Brendan Ngehsi Newanforbi, In Propria Persona